

Child Labor Laws



Bureau of Labor Standards

Child Labor Laws of the State of Maine provide protection for people under the age of 18 in both agricultural and nonagricultural jobs. The Maine Department of Labor administers the laws, which all employers must follow. Department representatives inspect workplaces to ensure compliance. Citations and penalties may be issued to employers who do not comply.

This poster describes some important parts of the laws. A copy of the actual laws and formal interpretations may be obtained from the Department of Labor, Bureau of Labor Standards, by calling (207) 623-7900. (The laws are also on the Bureau website.)



Maine Law (Title 26, M.R.S.A. § 42-B) requires every employer to place this poster in the workplace where workers can easily see it.

This poster is available online at no charge and may be copied: <https://www.maine.gov/labor/posters/>

14 and 15 year olds may work in most businesses, except in occupations declared hazardous and jeopardize their health, well-being or educational opportunities. 16 and 17 year olds may work in most businesses, however not in hazardous jobs. These provisions also provide limited exemptions. Contact the Bureau of Labor Standards for details.

Work Permits

- All minors under 16 years of age need work permits in order to work.
- Superintendent of schools certify academic standing.
- Minor allowed only one permit during the school year but two during summer vacation.
- Minor cannot work until permit is approved by Bureau of Labor Standards.
- Employer keeps Bureau-approved permit on file.

Recordkeeping

All employers must keep accurate payroll records for workers under 18. Records must show what time the minor began work, total hours worked, and what time the minor finished work each day.

Note: Maine employers may also be covered under the Federal Fair Labor Standards Act. For more information, contact the U.S. Department of Labor Wage and Hour Office at 603-666-7716 or <http://youth.dol.gov/>.

For more information, contact:

Maine Department of Labor
Bureau of Labor Standards
45 State House Station
Augusta, Maine 04333-0045

Tel: 207-623-7900 or 207-623-7930

TTY users call Maine Relay 711

Website: www.maine.gov/labor/bls

Email: bls.mdol@maine.gov

Work Hours 14 and 15 year olds

- No more than six days in a row.
- Cannot work before 7 a.m.
- Not after 7 p.m. during school year.
- Cannot work after 9 p.m. during summer vacation.

When School Is Not in Session

- No more than 8 hours in any one day (weekend, holiday, vacation or workshop).
- Not more than 40 hours in a week (school must be out entire week).

When School Is in Session

- No more than 3 hours on a school day, including Friday.
- Not more than 18 hours in a week that school is in session one or more days.

Work Hours 16 and 17 year olds (enrolled in school)

- No more than 6 days in a row.
- Cannot work before 7 a.m. on a school day.
- Cannot work before 5 a.m. on a non-school day.
- Cannot work after 10:15 p.m. the night before a school day.
- Can work up to midnight when there is no school the next day.

When School Is Not in Session

- No more than 10 hours in any one day (weekend, holiday, vacation, or workshop).
- No more than 50 hours in a week.

When School Is in Session

- No more than 6 hours on a school day.
- No more than 10 hours on any holiday, vacation, or workshop day.
- On last day of school week, may work up to 8 hours.
- No more than 24 hours in a week, except may work 50 hours any week that approved school calendar is less than three days or during the first and last week of school calendar.

Maine Employment Security Law



This poster is designed to notify individuals of their rights regarding the filing of claims for unemployment benefits. It does not have the force or effect of law. For more information, call 1-800-593-7660 toll free.



Rules Governing The Administration of the Employment Security Law states every employer shall post and maintain such notices to its workers.

This poster is available online at no charge and may be copied: <https://www.maine.gov/labor/posters/>

Full- and Part-Time Workers

How to file a claim for unemployment benefits

All new and reactivated claims for unemployment benefits are filed either online, telephone or by mail. **Do not delay in filing your claim once you are out of work. Claims cannot be backdated.**

When filing, you will need to know your Social Security Number. Also, you should have the names and addresses of all employers for whom you worked, and your dates of employment in the last 18 months.

To file online: www.maine.gov/reemploy

This is the fastest, easiest way to file.

To file by phone: 1-800-593-7660

TTY Users Call Maine Relay 711.

All individuals filing for Unemployment Insurance benefits are required by law to be registered with the Maine JobLink. Visit www.mainejobcenter.gov to access Maine JobLink.

We provide **language interpreter services** in approximately 140 commonly spoken languages. Arrangements will be made to have an interpreter assist you when you call the Unemployment Claims Center.

To claim by mail: In some cases, your employer will give you a claim form. Mail your initial claim form to the Unemployment Claims Center listed below.

**Maine Department of Labor
Bureau of Unemployment Compensation**

97 State House Station, Augusta, ME 04333-0097

Basic eligibility requirements

Earnings during the base period: The "base period" is a one-year period that includes four calendar quarters. To establish a claim, an individual must have earned two times the annual average weekly wage in Maine in each of two different calendar quarters, and a total of six times the annual average weekly wage in Maine in the whole base period. In most cases, the Department of Labor has your wage information on file. If it is not on file, the Department will take steps to obtain it.

Separation: If you were laid off from your last job due to a lack of work, no additional investigation is required. If you separated from your last job for reasons other than lack of work, you will be scheduled for a fact-finding interview. A determination will then be made regarding your eligibility for benefits.

Weekly requirements: Weekly eligibility requirements include being **able to work** and being **available** for work, making an **active search for work** (unless your work search has been "waived"), not refusing offers of suitable work or referral to suitable job opportunities from the CareerCenters.

Aliens: If you are not a U.S. Citizen, your Social Security Number and/or your Alien Permit number will be checked with the United States Citizenship and Immigration Services.

Unemployment benefits are taxable: Unemployment benefits are taxable and have to be reported when you file your income tax forms.

Child support: If you owe child support that you pay to the Department of Health and Human Services (DHHS), up to fifty percent (50%) of your unemployment check may be withheld and sent to DHHS.

Benefits for partial unemployment: An employer shall issue a properly completed partial unemployment claim form to each employee who is customarily employed full-time and who is given less than full-time hours during a week due to lack of work, and who is not separated from that employer.



THE MAINE HUMAN RIGHTS ACT PROHIBITS SEX DISCRIMINATION

SEXUAL HARASSMENT ON THE JOB IS ILLEGAL

- ✗ UNWELCOME SEXUAL ADVANCES
- ✗ SUGGESTIVE OR LEWD REMARKS
- ✗ UNWANTED HUGS, TOUCHES, KISSES
- ✗ REQUESTS FOR SEXUAL FAVORS
- ✗ RETALIATION FOR COMPLAINING
ABOUT SEXUAL HARASSMENT

IF YOU FEEL YOU HAVE BEEN DISCRIMINATED AGAINST, CONTACT:

MAINE HUMAN RIGHTS COMMISSION

51 STATE HOUSE STATION, AUGUSTA, MAINE 04333-0051

PHONE (207) 624-6290 FAX (207) 624-8729 TTY: MAINE RELAY 711

www.maine.gov/mhrc

OR CONTACT YOUR PERSONNEL DEPARTMENT: _____
DEPARTMENT / AGENCY CONTACT

Occupational Safety and Health Regulations for Public Sector Workplaces



Maine has an Occupational Safety and Health Law that protects state, county and municipal government employees from workplace safety and health hazards.

M.R.S.A. Title 26: Labor and Industry



Public sector employers must place this poster in the workplace where workers can easily see it.

This poster is available online at no charge and may be copied: <https://www.maine.gov/labor/posters/>

How are you protected?

- ✓ By law, an employer must provide a safe and healthful workplace for employees.
- ✓ Periodically, safety and health inspectors from the Maine Department of Labor will show up at your workplace to make sure your employer is following Safety and Health Regulations.
- ✓ You have a right to report work-related injuries and illnesses.
- ✓ If you think your workplace is unsafe, you or your representative can contact the Maine Department of Labor and request an inspection. You can request that your name be kept confidential.
- ✓ Employers, employees and employee representatives may go with the inspector on the inspection of your job site.
- ✓ Your employer may be cited and penalized if unsafe or unhealthful conditions are found during an inspection. Citations must be posted at or near the place of the alleged violation.
- ✓ Your employer must correct unsafe and unhealthful conditions found during an inspection.
- ✓ Employers that repeat safety and health violations or that violate the law on purpose may face fines, civil charges, or criminal charges.
- ✓ You cannot be fired or discriminated against for filing a safety and health complaint or reporting a work-related injury or illness. You can file a complaint with the Director of the Bureau of Labor Standards within 30 days of such an alleged violation.

Under a plan approved August 5, 2015, by the U.S. Department of Labor, Occupational Safety and Health Administration (OSHA), the State of Maine is providing job safety and health protection for workers in the public sector throughout the State.

OSHA will monitor the operation of this plan to assure that continued approval is merited. Any person may make a complaint regarding the State administration of this plan directly to the Regional Office of OSHA, JFK Federal Building, Room E-340, Boston, Massachusetts 02203.

Telephone: 617-565-9860 | Fax: 617-565-9827.

For after-hours fatality/catastrophe reporting:
207-592-4501 or email accident.bls@maine.gov.

Who can you contact to ask for an inspection or for safety and health information?

Maine Department of Labor
Bureau of Labor Standards
45 State House Station
Augusta, ME 04333-0045
207-623-7900
TTY users call Maine Relay 711.
Email: mdol@maine.gov
Web site: www.maine.gov/labor/bls

Regulation of Employment



Labor Laws of the State of Maine provide protection for people who work in Maine. The Maine Department of Labor administers the laws, which all employers must follow. Department representatives inspect workplaces to ensure compliance. Citations and penalties may be issued to employers who do not comply.

This poster describes some important parts of the laws. A copy of the actual laws or formal interpretations may be obtained from the Department of Labor, Bureau of Labor Standards, by calling 207-623-7900. (The laws are also on the Bureau's web site.)



Maine Law (Title 26 M.R.S.A. § 42-B) requires every employer to place this poster in the workplace where workers can easily see it.

This poster is available online at no charge and may be copied: <https://www.maine.gov/labor/posters/>

Time of Payment

Employees must be paid in full at least every 16 days. Employees must be notified of any decrease in wages or salary at least one day prior to the change.

Payment of Wages

An employee leaving employment, must be paid in full no later than the employee's next established payday. This may also include the payment of accrued vacation pay and/or Earned Paid Leave.

Unfair Agreement

Employers cannot require that an employee pay for losses such as broken merchandise, bad checks, or bills not paid by customers, nor for special uniforms and certain tools of the trade.

Rest Breaks

Most employees must be offered a 30 consecutive minute paid or unpaid rest break after 6 hours of work.

Nursing mothers must be provided with unpaid break time or be permitted to use their paid break or meal time to express milk. The employer must make reasonable efforts to provide a clean room or location, other than a bathroom, where the milk can be expressed.

Family Medical Leave

An employee who has worked for the last 12 months at a workplace with 15 or more employees may be entitled to up to 10 weeks of paid or unpaid leave for a qualifying event.

- ◆ Birth or adoption of a child or domestic partner's child;
- ◆ Serious health condition of the employee or immediate family member, including domestic partner; domestic partner's child, grandchild, domestic partner's grandchild;
- ◆ Organ donation;
- ◆ Death or serious health condition of the employee's spouse, domestic partner, parent or child if it occurs while the spouse, domestic partner, parent or child is on active duty;
- ◆ Serious health condition or death of a sibling who shares joint living and financial arrangements with the worker.

(Federal family medical leave is different, call 866-487-9243 for more information.)

Leave for Victims of Violence, Assault, Sexual Assault or Stalking

Must be allowed upon request if an employee (or a child, parent or spouse of an employee) is a victim of violence, assault, sexual assault or stalking or any act that would support an order for protection under Title 19-A M.R.S.A., c. 101 and the employee needs the time to:

- ◆ Prepare for and attend court proceedings; or
- ◆ Receive medical treatment; or
- ◆ Obtain necessary services to remedy crisis.

Leave to Care for Family

If the employer's policy provides for paid time off, the employee must be allowed to use up to 40 hours in a 12-month period to care for an immediate family member who is ill.

Earned Paid Leave

An employer that employs more than 10 employees in the usual and regular course of business for more than 120 days in any calendar year shall permit each employee to earn paid leave based on the employee's base pay. An employee is entitled to earn one hour of paid leave from a single employer for every 40 hours worked, up to 40 hours in one year of employment. Accrual of leave begins at the start of employment, but the employer is not required to permit use of the leave before the employee has been employed by that employer for 120 days during a one-year period.

Earned Income Tax Credit

Employees may be eligible for federal and state earned income tax credits. Employees may apply for the tax credits on the employee's income tax return.

Note: Maine employers may also be covered under the Federal Fair Labor Standards Act. For more information, contact the U.S. Department of Labor Wage and Hour Office at 866-487-9243.

For more information, contact:

Maine Department of Labor
Bureau of Labor Standards
45 State House Station
Augusta, Maine 04333-0045
located at: 45 Commerce Drive

Telephone: 207-623-7900 | TTY users call Maine Relay 711.
Website: www.maine.gov/labor/bls | Email: bls.mdol@maine.gov

At-Will Employment —Under Maine law, an at-will employee may be terminated for any reason not specifically prohibited by law. In most instances, you are an at-will employee unless you are covered by a collective bargaining agreement or other contract that limits termination. If you have questions about at-will employment, contact your human resources department or the Bureau of Labor Standards.

Video Display Terminals



Bureau of Labor Standards

The Maine Video Display Terminal (VDT) Law gives certain rights to people who use computers for work.



Maine Law (Title 26 M.R.S.A. § 42-B) requires every employer to place this poster in the workplace where workers can easily see it.

This poster is available online at no charge and may be copied: <https://www.maine.gov/labor/posters/>

Video Display Terminals MRSA Title 26 §251.

1. Bureau. "Bureau" means the Department of Labor, Bureau of Labor Standards.
2. Employ. "Employ" means to employ or permit to work.
3. Employee. "Employee" means any person engaged to work on a steady or regular basis as an operator by an employer located or doing business in the State.
4. Employer. "Employer" means any person, partnership, firm, association or corporation, public or private that uses 2 or more terminals at one location.
5. Operator. "Operator" means any employee whose primary task is to operate a terminal for more than four consecutive hours, exclusive of breaks, on a daily basis.
6. Terminal. "Terminal" means any electronic video screen data presentation machine, commonly called video display terminals.

For full text of the statute visit MRSA Title 26 §251, 252.

If you have questions about working safely at the computer, speak to your supervisor or contact the
Maine Department of Labor
Bureau of Labor Standards
Tel: 1-877-SAFE-345 (1-877-723-3345)
TTY users call Maine Relay 711.
Web site: www.maine.gov/labor/bls
Email: bls.mdol@maine.gov

Education and training MRSA Title §252.

Every employer shall establish an education and training program for all operators as provided in this section.

1. Requirements. An employer's education and training program must be provided both orally and in writing, except that an employer that uses fewer than 5 terminals at one location may provide the education and training program in writing only.

The program must include, at a minimum:

- A. Notification of the rights and duties created under this subchapter by posting in a prominent location in the workplace a copy of this subchapter.
 - B. An explanation or description of the proper use of terminals and the protective measures that the operator may take to avoid or minimize symptoms or conditions that may result from extended or improper use.
 - C. Instruction related to the importance of maintaining proper posture during terminal operation and a description of methods to achieve and maintain this posture, including the use of any adjustable work station equipment used by the operator.
2. Literature; clearinghouse. The bureau shall recommend to employers, for use in education and training programs, occupational safety literature that provides appropriate, current and pertinent data on terminal use.
 3. Training schedule. Employers shall provide operators with this education and training program within 30 days of employment and annually thereafter.

Veterans' Benefits & Services

MAINE DEPARTMENT OF LABOR

Bureau of Labor Standards

Benefits and Services for Maine Veterans can be accessed through the Department of Defense, Veterans and Emergency Management and the Maine Bureau of Veterans' Services.

This poster describes some important benefits and services offered. Free printed posters and requirements may be obtained from the Department of Labor, Bureau of Labor Standards, by calling 207-623-7900 or by visiting the Bureau's website at www.maine.gov/labor/posters.



Maine Law (Title 26, M.R.S.A. § 42-D) requires every employer with more than 50 full-time equivalent employees to place this poster in the workplace where workers can easily see it.

This poster is available online at no charge and may be copied: www.maine.gov/labor/posters/

The State of Maine provides a wide variety of services for Veterans. This poster provides information for the following benefits and services:

Educational, Workforce & Training Resources

- Maine CareerCenters are located throughout the state and provide educational, training and workforce resources, including veteran-specific referral services through the Maine Military and Community Network and employment support like the Maine Hire-A-Vet Program at www.mainecareercenter.com/mhav/
- Each CareerCenter has a dedicated veteran representative onsite. Find out more at www.mainecareercenter.gov and www.mainecareercenter.gov/employment/veterans.shtml
- Entrepreneurship services from the Small Business Administration are also offered. Find out more at www.maine.gov/veterans/benefits/employment/
- For further educational resources, the Maine Bureau of Veterans' Services has a complete listing of institutions of higher learning in their Maine Veterans' Benefits and Resource Guide at www.maine.gov/veterans/docs/MBVS-Resource-Guide.pdf
- The State of Maine has an employment preference to veterans who apply for State positions. In addition, in accordance with Executive Order 2016-002, if a veteran applies for a State job and is not ultimately hired for that job, it is the policy of the Bureau of Human Resources to provide guidance to that veteran on other State of Maine openings for which that veteran may be qualified to apply. See guidance at www.maine.gov/bhr/state-jobs/veterans-preference-in-job-applications

Eligibility for Unemployment Insurance Benefits

- You may be eligible for unemployment if you separated in the last 18 months.
- If filing in the State of Maine, call 1-800-593-7660 or visit the unemployment website for more information www.maine.gov/unemployment/

Driver's Licenses & Non-Driver Identification Cards

- Veterans may request a military service license designator for their license or ID. Proof of active service or honorable discharge (DD Form 214) is required.
- For more information about the eligibility requirements for the Military Service Designation, contact the Bureau of Motor Vehicles at 207-624-9000.

The Maine Department of Labor provides equal opportunity in employment and programs. Auxiliary aids and services are available to people with disabilities upon request.

Crisis Line

The Crisis Line provides 24/7, confidential support for veterans AND their families.

Veterans do not have to be enrolled in VA benefits or health care to access this service.

To access assistance, dial 988, then press 1

For an online chat option, go to www.veteranscrisisline.net.

Substance Use & Mental Health Treatment

- Veterans seeking assistance for substance use treatment should contact the SUD Intensive Outpatient's (Addictions Services - SUD Program) at 207-623-8411x 4098. For other mental health services, go to: www.va.gov/directory/guide/SUD.asp

Tax Benefits

- Veterans are entitled to certain tax benefits. To find out more, go to www.maine.gov/veterans/benefits/tax-finance-benefits/index.html

Legal Services

- To access legal services for Veterans, go to www.maine.gov/veterans/resources/index.html and choose the Legal/Financial option. Veterans can also select a specific county to search, or can choose to search the entire state for resources.
- The map will provide legal services options, complete with links to the businesses and/or agencies.

Assistance

- Filing a claim with the VA
- Enrolling in VA Healthcare
- Obtaining burial benefits
- Housing/Homelessness assistance
- Recognitions for services
- Educational benefits
- Other State benefits such as providing park passes, hunting and fishing licenses

To Access Services, Contact:

Veterans & Emergency Management

Website: www.maine.gov/dvem/index.html

Maine Bureau of Veterans' Services

Phone: 207-287-7020 | Website: www.maine.gov/veterans/

WORKERS' COMPENSATION

Visit our website at:
www.maine.gov/wcb
Statewide TTY: 711

La loi interdit aux employeurs de classer fallacieusement leurs salariés comme étant des contractants privés aux fins d'échapper à l'assurance compensatrice-employé, aux

En caso de tener cualquier pregunta sobre sus derechos, favor de dirigirse a una de las oficinas regionales de compensaciones para el trabajador.

ENGLISH	ENGLISH	ENGLISH
SPANISH	POLISH	VIETNAMESE
PORTUGUESE	RUSSIAN	ARABIC
CHINESE	CHINESE	PERSIAN
ITALIAN	JAPANESE	SOMALI
FRENCH	KOREAN	

Interpreters Available	Tłumacze dostępni na życzenie.	“Cố Thông Dịch Viên”
When calling for assistance, please say the name of your language in English and an interpreter will be called for you. Please stay on the line.	Aby uzyskać pomoc tłumacze, proszę powiedzieć po angielsku "Polish" i czekać na linię.	“Khi gọi điện thoại để được giúp đỡ, xin quý vị hãy nói “VIETNAMESE” để chúng tôi cho thông dịch viên giúp quý vị. Xin quý vị chờ trên đường dây.
Tenemos intérpretes a su disposición	“К вашим услугам имеются переводчики”	
Si necesita que le atiendan en español por favor diga “Spanish” y le conectaremos con un intérprete. Por favor manténgase en la línea.	“Когда Вы обращаетесь за помощью по телефону, пожалуйста скажите, что Вы говорите по-русски (произнесите “РАШН”), и мы обеспечим Вас переводчиком. После этого, пожалуйста, оставайтесь на линии.”	مترجمون شفهيون متيسرون لخدمتكم عند إتصالكم للمساعدة أو لطلب خدمة معينة نرجو منكم أن تذكروا (أ-ز-پ-ك) ونحن سنقدم لكم مترجما شفهيًا . ابقوا على الخط من فضلكم.
Temos intérpretes à sua disposição	提供口譯服務	
Se precisar de atendimento em Português, por favor diga “Portuguese” e um intérprete será prontamente chamado. Por favor, aguarde na linha.	打電話請求幫助時，請用英語說“挾音呢斯”(CHINESE)— 我們將為您提供口譯人員。請不要挂斷電話。	افراد مترجم در دسترس مي باشند. را كه بدان صحبت مي كنيد به انگليسي ذكر كنيد تا راجع به امري به ما تلفن مي كنيد، لطفاً نام زباني قطع نكنيد. هنگاميكه براي درخواست كمك يا شما تماس گرفته شود. لطفاً روي خط منتظر بمانيد.
Abbiamo interpreti disponibili	通訳サービスをご利用いただけます	با يك مترجم براي
Se avete bisogno di assistenza in Italiano, Vi preghiamo di dire “Italian” e un interprete sarà messo a Vostra disposizione. Vi preghiamo di rimanere in linea.	通訳を必要とされる場合は「ジャパニーズ」とおっしゃり、通訳がでるまでそのままお待ちください。	
Des interprètes sont à votre disposition	한국어 통역을 이용하실 수 있습니다.	Turjunaanno waa la helayaa
Lorsque vous appelez pour demander de l'aide, prononcez le mot “French” et nous mettrons un interprète à votre disposition. Prière de rester en ligne.	도움이 필요하여 전화를 거실 때 영어로 코리아 (KOREAN)이라고 말씀하시면 통역자를 연결해 드릴 것입니다. 전화를 끊지 마시고 기다리십시오.	Marka aad caawinaad inoogu soo yeeraneysid, fadhlan luqaddaada af Ingiriisi inoogu sheeg turjubaan ayaa lguugu yeeri doonaaye. Taleefoonkana ha dhigin.

WCB-90 (1/1/2020, revised 3/7/2022)

Whistleblower's Protection Act



Protection of Employees Who Report or Refuse to Commit Illegal Acts



This poster describes some important parts of the law. A copy of the actual law or formal interpretations may be obtained from the Department of Labor, Bureau of Labor Standards by calling 207-623-7900. (The laws are also on the Bureau's website.)

Maine Law (Title 26
M.R.S.A. § 839) requires
every employer to
place this poster in
the workplace where
workers can easily see it.

This poster is available online at no charge and may be copied: <https://www.maine.gov/labor/posters/>

It is illegal for your boss to fire you, threaten you, retaliate against you or treat you differently because:

1. You reported a violation of the law;
2. You are a healthcare worker and you reported a medical error;
3. You reported something that risks someone's health or safety;
4. You have refused to do something that will endanger your life or someone else's life and you have asked your employer to correct it; or
5. You have been involved in an investigation or hearing held by the government.

You are protected by this law ONLY if:

1. You tell your boss about the problem and allow a reasonable time for it to be corrected; or
2. You have good reason to believe that your boss will not correct the problem.

To report a violation, unsafe condition or practice or an illegal act in your workplace, contact:

(This information should be filled in by the employer)

(Name)	(Title)	(Location or Phone)
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For more information or to file a complaint under this law, contact:

The Maine Human Rights Commission
51 State House Station
Augusta, Maine 04333
Tel: 207-624-6290
TTY users call Maine Relay 711
www.Maine.gov/mhrc

The following agencies may provide useful information on workplace safety and labor laws:

U.S. Department of Labor
Wage and Hour Division
P.O. Box 554
Portland, Maine 04112
Tel: 207-780-3344
www.dol.gov

U.S. Department of Labor/OSHA
40 Western Avenue
Augusta, Maine 04330
Tel: 207-626-9160
www.osha.gov

Maine Department of Labor
Bureau of Labor Standards
45 State House Station
Augusta, Maine 04333-0045
Tel: 207-623-7900
TTY users call Maine Relay 711.
Web site: www.maine.gov/labor/bls
Email: bls.mdol@maine.gov

The Maine Department of Labor provides equal opportunity in employment and programs. Auxiliary aids and services are available to people with disabilities upon request.

Paid Family and Medical Leave



Bureau of Labor Standards

Maine's Paid Family and Medical Leave (PFML) law will provide up to 12 weeks of paid leave for family leave, medical leave, safe leave or leave related to a family member's impending military deployment.

A copy of the actual laws and formal interpretations may be found online at www.maine.gov/paidleave or by calling 207- 623-7900 | TTY users call Maine Relay 711.



Maine Law (Title 26, M.R.S.A. § 42-B and § 850-1) requires every employer to place this poster in the workplace where workers can easily see it.

This poster is available online at no charge and may be copied: www.maine.gov/labor/posters/

Benefits

- Benefits are available for the duration of your needed leave or 12 weeks, whichever is less.
- Benefit amounts will be determined based on your previous earnings and are capped at Maine's annual statewide average weekly wage.

Reasons for Leave

Family leave: To care for a new child through birth, adoption, fostering, or to care for family with a serious health condition.

Medical leave: To care for one's own serious medical needs.

Safe leave: To stay safe or to help a family member stay safe after abuse or violence.

Military leave: For emergencies related to a family member's impending military deployment.

Types of Leave

Continuous leave: Leave where you are out of work for days or weeks at a time.

Intermittent leave: Leave where you are still working and you need to take time off but it is not the same every day or every week.

Reduced leave: Leave where you are still working but you are consistently working fewer hours.

Eligibility

- To establish a claim, you must have earned a total of six times the statewide annual average weekly wage in Maine in your base period. The base period is defined as the first four of the last five completed calendar quarters. In most cases, the Department of Labor has your wage information on file. If it is not on file, the Department will take steps to obtain it.

Payroll Deductions

- Premiums will be deducted from your pay beginning with the first pay date after January 1, 2025.
- For calendar years 2025 through 2027, the premium rate for you cannot be more than 0.5 percent of wages. For example, an individual who earns \$600 per week will contribute no more than \$3 per week.

Other Information You Should Know

- Except in a medical emergency, an employer can claim an undue hardship in certain circumstances and request that the leave be scheduled at a mutually-agreeable time.
- Employers must restore you back to your original position or to an equivalent position with equivalent benefits, pay and other terms and conditions of employment if you have been with your employer for at least 120 consecutive days when you started your leave.

For more information contact:

Maine Department of Labor
Paid Family and Medical Leave
50 State House Station
Augusta, Maine, 04333-0050
Website: www.maine.gov/paidleave/

Applications for benefits are scheduled to be accepted starting **May 1, 2026**



MAINE LAW PROTECTS WORKERS FROM HAVING TO PARTICIPATE IN EMPLOYERS' RELIGIOUS OR POLITICAL MEETINGS

Maine Law 26 MRSA §600-B prevents employers from:

- requiring employees to attend meetings about the employers' political opinions or religious beliefs;
- requiring employees to receive or listen to communications about the employers' political opinions or religious beliefs;
- retaliating against or disciplining employees who choose not to attend these meetings or receive these communications;
- retaliating against employees who report violations of this law or who file a lawsuit to enforce their rights.

Employers cannot fire, discipline, demote, threaten, or otherwise penalize workers who assert their rights under 26 MRSA §600-B. Employers must post these rights with other employee notices.

"Political matters" relate to elections for political office; political parties; proposals to change law, rules or regulations, or proposals public policy; and the decision to join or support any political party or political, civic, community, fraternal or labor organization.

"Religious matters" relate to religious belief, affiliation and practice; and the decision to join or support any religious organization or association.

26 MRSA §600-B does not apply to religious employers.

26 MRSA §600-B does not prohibit employers from having meetings or sending communications about:

- lawful job-related or legally required information;
- information employees need to do their jobs;
- holding completely voluntary meetings about religious or political matters.

IF YOUR RIGHTS ARE VIOLATED:

You may file a civil lawsuit in Maine Superior Court if your rights are violated. You have **90 days** from the date of the violation to file. A court may order that:

- you be rehired, if you were fired;
- the employer pay you back wages and/or restore your benefits/seniority;
- the employer stop the violations; and
- other remedies.

The Maine Department of Labor does not enforce these protections.